

25AVCV00336 25AVCV00336

County: los-angeles

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

EMMALEE CLARK, a minor, through her Guardian ad Litem ASHLEE CLARK,

Plaintiff,

v.

CITY OF PALMDALE; SELF-INSURED SCHOOLS OF CALIFORNIA dba Vista San Gabriel Elementary School; DOES 1 through 25, inclusive,

Defendants.

Case Number 25AVCV00336

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 14, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a negligence case arising from a minor child being placed on the wrong school bus after the end of her school day.

On March 13, 2025, Plaintiff Emmalee Clark (Plaintiff), a minor, by and through her Guardian ad Litem Ashlee Clark, filed her complaint against Defendants City of Palmdale, Self-Insured Schools of California dba Vista San Gabriel Elementary School (SISC), and DOEs 1 through 25 asserting a cause of action for general negligence. Specifically, Plaintiff alleges that on February 8, 2024, at approximately 2:30 p.m., Defendants place Plaintiff on the wrong school bus, and she became lost. (Compl., General Negligence Cause of Action Attachment.) Plaintiff alleges that the defendants each owed Plaintiff a duty to use the highest care and vigilance and negligently breached this duty, causing Plaintiff to sustain distress and confusion. (Ibid.)

On August 13, 2025, City of Palmdale was dismissed without prejudice.

On August 14, 2025, Plaintiff filed a proof of personal service of summons on SISC, who was purportedly served on July 11, 2025.

On September 9, 2025, Defendant specially appeared and moved to quash the service of summons.

On October 20, 2025, the Court issued a minute order granting SISC's unopposed motion to quash without calling the matter for hearing. Plaintiff was given notice.

On December 9, 2025, the Order granting the motion to quash was filed.

On March 12, 2026, Plaintiff filed a second proof of personal service of summons on SISC, who was purportedly served on February 23, 2026.

On March 25, 2026, SISC again specially appeared and filed the present motion to quash the service of summons.

Plaintiff again has not opposed this motion.

II. Legal Standard

Standard for Motion to Quash Service – A defendant who contends service of summons is defective may, on or before the last day its time to plead or within any further time that the court may allow for good cause, may move to quash service of summons on the ground of lack of personal jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).)

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, 'the burden is on the plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413 (internal citations omitted).) "The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements." (Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 795.)

“On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.’ [Citation.]” (Brown v. Garcia (2017) 17 Cal.App.5th 1198, 1203; see also Sheard v. Superior Court (1974) 40 Cal.App.3d 207, 211 [“[W]here a defendant properly moves to quash service of summons the burden is on the plaintiff to prove facts requisite to the effective service.”].)

III. Discussion

Application – SISC moves to quash service of summons on the grounds that the proof of service file does not establish that service was proper, that service was not proper under California Code of Civil Procedure section 416.50, and that Plaintiff is improperly serving SISC in an attempt to serve Vista San Gabriel Elementary School (Vista).

For service to be valid, it must (1) be made by a non-party to the case who is over the age of 18 (Code Civ. Proc., § 414.40), (2) be made through a permitted method of service as delineated in California Code of Civil Procedure §§ 415.10 – 415.95, and (3) must be made on a person eligible to receive service of process for the served defendant (Code Civ. Proc., §§ 416.10-416.90).

The proof of service filed March 12, 2026 (POS) states that the pleadings were served on SISC on February 23, 2026 via personal service on “Lucy Perez, HR Tech – Person Authorized to Accept Service of Process” at 18020 E Ave O, Palmdale, CA 93591. (POS, ¶¶ 2-5.) The POS also states that the service was made pursuant to California Code of Civil Procedure section 416.50, which governs service of summons on a public entity. Section 416.50 states, in relevant part, that a summons may be served on a public entity by delivering a copy of the summons and complaint to the clerk, secretary, president, presiding officer, or other head of its governing body.

Here, SISC argues that service was improper. (Motion, p. 6:5-8.) SISC notes that Plaintiff is aware that Dr. Ostash of SISC is the only individual eligible to receive service of process on behalf of SISC, but that the POS reflects service on a Lucy Perez, who is not even an employee with SISC. (Motion, p. 6:5-7.) Furthermore, the address where service occurred is apparently not an office of SISC. (Motion, p. 6:7-8.) Additionally, Defendant states that SISC is a third party administrator for Joint Powers Association, handling an insurance pool for school districts, and that SISC is not a school district, is not a school, and does not own, operate, or manage Wilsona School District or Vista. (Motion, p.6:26-7:1; Bourget Decl., ¶ 3.) Dr. Ostash states he is the Chief Executive Officer of SISC, that Lucy Perez is not and never has been an employee or agent of SISC, that 18020 E. Ave. O is not an address of SISC, and he has not and never has been served process for this case, appointed or authorized any person to receive process for SISC on his behalf, and that SISC has not appointed or authorized any other individuals to receive process for SISC. (Ostash Decl., ¶¶ 1, 3-4.)

SISC also provides the Declarations of Katerina J. Valencia and Louis R. Dumont, detailing the efforts SISC has taken to contact Plaintiff’s counsel and correct the improper service and to inform Plaintiffs that they were not serving the proper defendant in this case. Dumont’s Declaration discusses three separate improper service attempts and Dumont’s inability to rectify the issues addressed in the present motion with Plaintiff’s counsel directly. (Dumont Decl., ¶¶ 2-10.)

As stated above, Plaintiff bears the burden of proof to establish that service was proper. Plaintiff has not filed any opposition to this motion and has failed to establish that the proper individual was served with process.

Accordingly, SISC’s motion to quash service of summons is GRANTED.

IV. Conclusion

Defendant Self-Insured Schools of California's Motion to Quash Service of Summons is GRANTED.